

Court No. - 39

Case :- WRIT - C No. - 7166 of 2021

Petitioner :- Shlok Sangam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Upadhyay

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Deepak Verma,J.

On the basis of the written instruction received by the counsel for the respondents, it is stated that the present matter is of theft of electricity. The petitioner seeks to challenge the assessment made by the Executive Engineer. In the first round of litigation in Writ-C No.6869, the petitioner had challenged the recovery certificate dated 16.12.2019, seeking payment of electricity dues in installment, the request made by the petitioner was directed to be considered in accordance with law.

In view of the direction of this Court, the Executive Engineer, Vidyut Vitran Khand-III, District Azamgarh had decided the representation of the petitioner in accordance with clause 6.14 of the U.P. Electricity Supply Code' 2005 for payment of the entire outstanding electricity dues in three instalments. Now the contention of the petitioner is that while computing the dues to be paid in instalment, the total amount has been increased exorbitantly.

As the dispute raised herein is factual in nature, it is open for the petitioner to file an appeal under Section 127 of the Electricity Act' 2003 to challenge the calculation/computation made by the Executive Engineer.

The writ petition is, accordingly, **dismissed**.

Order Date :- 16.3.2021

Himanshu